It is true that this proposition was once challenged by one Justice. *Connecticut General Co.* v. *Johnson,* 303 U. S. 77, 83 (dissenting opinion). But the challenge did not commend itself, even to such consistent liberals as Mr. Justice Brandeis and Mr. Justice Stone, and I had supposed it was no longer pressed. See the same Justice's separate opinion in *International Shoe Co.* v. *Washington,* 326 U. S. 310, 322, making no mention of this issue.

Without pretending to a complete analysis, I find that in at least two cases during this current term the same question was appropriate for consideration, as here. In *Railway Express Agency* v. *New York,* 336 U. S. 106, a corporation claimed to be deprived of both due process and equal protection of the law, and in *Ott* v. *Mississippi Barge Line,* 336 U. S. 169, a corporation claimed to be denied due process of law. At prior terms, in many cases the question was also inherent, for corporations made similar claims under the Fourteenth Amendment. See, e. g., *Illinois Central R. Co.* v. *Minnesota,* 309 U. S. 157; *Lincoln Life Insurance Co.* v. *Read,* 325 U. S. 673; *Queenside Hills Co.* v. *Saxl,* 328 U. S. 80. Although the author of the present dissent was the writer of each of the cited Court's opinions, it was not intimated therein that there was even doubt whether the corporations had standing to raise the questions or were entitled to protection of the Amendment. Instead, in each case the author, as I have done in this case, proceeded to discuss and dispose of the corporation's contentions on their merits, a quite improper procedure, I should think, if the corporation had no standing to raise the constitutional questions. Indeed, if the corporation had no such right, it is difficult to see how this Court would have jurisdiction to consider the case at all.

It may be said that in the foregoing cases other grounds might have been found upon which to defeat the corporations' claims, while in the present case apparently there is none.